Policy: 3144
Section: 3000 – Students

(DRAFT 09-02-20)

PROPOSED POLICY *REPEAL*

Information Item

Rationale: This policy is proposed to be repealed because the language in this policy is now included in new Policy 3143, Notification and Dissemination of Information about Student Offenses and Notifications of Threats of Violence or Harm.

~~Release of Information Concerning Student Sex and Kidnapping Offenders~~

~~The district recognizes its responsibility for the health and safety of all students, including students required to register as a sex or kidnapping offender enrolled within the district. Therefore, the district will take appropriate precautionary measures in situations where the building administrator has been advised by law enforcement or a court that a student required to register as a sex or kidnapping offender plans to enroll or is attending a school within the district.~~

~~A. Building Administrator Responsibilities~~

~~When a building administrator receives notice from law enforcement or a court that a sex or kidnapping offender will be attending the building administrator's school, the building administrator will provide the information received to every teacher of the student and to any other personnel who, in the judgment of the Building administrator, supervises the student or for security purposes should be aware of the student's record.~~

~~B. Collaboration~~

~~The building administrator or designee will work with law enforcement and courts to coordinate the receipt of notifications regarding students registered as sex or kidnapping offenders. The Building administrator or designee will also consult and collaborate with the department of Ccorrections, juvenile justice staff, treatment providers, victim support groups, and families, as applicable, when working with students required to register as a sex or kidnapping offender.~~

~~C. Confidentiality~~

1. ~~Any information received by a building administrator or school personnel as a result of a notification is confidential and may not be further disseminated except as provided in RCW 28A.225.330, other statutes or case law, and the Family and Educational Privacy Rights Act (FERPA), 20 U.S.C. § 1232g et. seq.~~

2. ~~A school district or district employee who releases information under RCW 28A.225.330 is immune from civil liability for damages unless it is shown that the school district or district employee acted with gross negligence or in bad faith.~~

~~D. Inquiries by the Public~~

~~District staff will refer inquiries by the public at large (including parents and students) regarding students required to register as a sex or kidnapping offender directly to law enforcement. Law enforcement agencies receive relevant information about the release of sex and kidnapping offenders into communities and decide when such information needs to be released to the public.~~

~~E. Student Rights and Responsibilities~~

~~All students, including those students required to register as a sex or kidnapping offender, have a constitutional right to a public education. Students required to register as sex or kidnapping offenders are also required to notify law enforcement of their intent to enroll in school.~~

~~F. Written Procedures~~

~~The superintendent or designee will adopt written procedures for building administrators describing how the building administrator will disseminate information received about students who are sex or kidnapping offenders with appropriate school personnel.~~

~~Legal References:~~ ~~RCW 4.24.550~~
~~RCW 9A.44.130~~
~~RCW 13.04.155~~
~~RCW 13.40.215~~
~~RCW 28A.225.330~~
~~RCW 72.09.345~~
~~20 U.S.C. 1232g et. seq Family and Educational and Privacy Rights Act~~
~~Art. IX, Section 1, Washington State Constitution~~

Adopted: February 12, 2019

Repealed: _____

VPS